

Amendment No. 1 to HB1692

Farmer  
Signature of Sponsor

**AMEND Senate Bill No. 1751**

**House Bill No. 1692\***

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 36-1-116(a), is amended by adding the following as a new subdivision:

(4)

(A) The court may waive the requirement for a home study in an adoption when the prospective adoptive parent or parents are not related to the child if:

(i) The child has resided in the home of the prospective adoptive parent or parents for at least twelve (12) months;

(ii) The prospective adoptive parent or parents were granted custody of the child pursuant to a final order entered by a court of competent jurisdiction following a full adjudication on the merits; and

(iii) The petition to waive the home study includes:

(a) A current criminal history background check conducted through the Tennessee bureau of investigation; and

(b) A current search of the Tennessee sexual offender and violent sexual offender registry.

(B) The court must enter a written order making specific findings to support a determination that waiving the home study is in the best interest of the child.

(C) This subdivision (a)(4) does not require a court to waive a home study. The decision to waive a home study remains within the sound discretion of the court.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.